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FEDERAL EXPRESS CORPORATION

UNITED STATES DISTRICT COURT

EASTERN DISTRICT OF CALIFORNIA

BRENDAN NGEHSI NEWANFORBI,

Plaintiff,

vs.

FEDERAL EXPRESS CORPORATION, and DOES 1 through 10, inclusive,

Defendants.

Case No.: 2:26-cv-02881-DAD-SCR

DEFENDANT FEDERAL EXPRESS CORPORATION'S ANSWER TO PLAINTIFF'S COMPLAINT

Complaint Filed: July 15, 2026
Trial Date: Not Set

Defendant Federal Express Corporation ("Defendant" or "FedEx") hereby submits its Answer to the Complaint filed by Plaintiff Brendan Ngehsi Newanforbi ("Plaintiff") pursuant to Rules 8(b), 8(c), and 81(c)(2) of the Federal Rules of Civil Procedure. This action was removed to this Court from the Superior Court of California, County of San Joaquin, Case No. STKCVUWT20269118, pursuant to 28 U.S.C. §§ 1332, 1441, and 1446 on the basis of diversity jurisdiction. Defendant responds as follows:

INTRODUCTION

1. Defendant denies each and every allegation contained in paragraph 1 of the Complaint.

2. Defendant denies each and every allegation contained in paragraph 2 of the Complaint.

3. Defendant denies each and every allegation contained in paragraph 3 of the Complaint.

PARTIES

4. Defendant admits that Plaintiff is a natural person who resides in Stockton, California. Defendant denies the remaining allegations in paragraph 4.

5. Defendant admits that it is a Delaware corporation authorized to do business in California and that it conducts business in California, including in San Joaquin County. Defendant denies the remaining allegations in paragraph 5 and denies any characterization or legal conclusion drawn therefrom.

6. Defendant is without sufficient information or belief to admit or deny the allegations in paragraph 6 concerning the Doe defendants and on that basis denies them.

JURISDICTION AND VENUE

7. Defendant admits that the Superior Court of California, County of San Joaquin, had jurisdiction over unlimited civil matters exceeding $35,000 at the time the Complaint was filed in state court. To the extent paragraph 7 purports to

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characterize the jurisdictional requirements of this federal court after removal, those requirements are established by federal law and no further response is required. Defendant denies that Plaintiff's damages, if any, exceed any particular amount or any amount at all.

8. Defendant admits that venue was proper in San Joaquin County Superior Court prior to removal. Defendant does not contest that venue is proper in this federal district following removal pursuant to 28 U.S.C. § 1441. Defendant denies that any injuries occurred or that Defendant caused any injury to Plaintiff.

9. Defendant admits that it is authorized to transact and does transact business in California. Defendant denies the remaining allegations in paragraph 9 and denies any legal conclusion drawn therefrom.

FACTUAL ALLEGATIONS

A. General Allegations Regarding California Penal Code Section 290.46(j)

10. Paragraph 10 purports to characterize California Penal Code section 290.46. To the extent it accurately states the law, no response is required. To the extent it misstates the law or draws legal conclusions, Defendant denies the allegations.

11. Paragraph 11 purports to characterize California Penal Code section 290.46(j)(1) and (j)(2). To the extent it accurately states the law, no response is required. To the extent it misstates the law or draws legal conclusions, Defendant denies the allegations.

12. Defendant denies the allegations in paragraph 12. Defendant specifically denies that the prohibition in California Penal Code section 290.46(j)(2)(E) is categorical and admits no exception applicable to the facts of this case.

13. Paragraph 13 purports to characterize California Penal Code section 290.46(j)(4)(A). To the extent it accurately states the law, no response is required. To the extent it misstates the law or draws legal conclusions, Defendant denies the allegations.

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14. Defendant is without knowledge or information sufficient to form a belief as to the truth of the allegations in paragraph 14 concerning the practices of background screening companies generally and on that basis denies them. Defendant denies the remaining allegations in paragraph 14.

15. Defendant admits that it is a large national employer and that it operates facilities in California. Defendant denies the remaining allegations in paragraph 15, including any allegation that Defendant's policies or practices violate California Penal Code section 290.46(j)(2)(E).

B. Plaintiff's Application for Employment with FedEx

16. Defendant admits that Plaintiff submitted an employment application in January 2025 for a package handler position and that a background check was initiated. Defendant denies the remaining allegations in paragraph 16.

17. Defendant admits that it engaged First Advantage to conduct a background screening report in connection with Plaintiff's application. Defendant denies the remaining allegations in paragraph 17.

18. Defendant admits that First Advantage sent Plaintiff a pre-adverse action notice on or about March 10, 2025. Defendant admits that the notice directed Plaintiff to review information regarding his background screening report. Defendant denies the remaining allegations in paragraph 18.

19. Defendant admits that a pre-adverse action notice was sent to Plaintiff consistent with the requirements of federal and state law. Defendant denies the remaining allegations in paragraph 19.

C. Background Check Process and Contents of the Screening Report

20. Defendant admits that First Advantage conducted a background screening report on Plaintiff and that the report was provided to FedEx on or before March 10, 2025. Defendant denies the remaining allegations in paragraph 20.

21. Defendant is without knowledge or information sufficient to form a belief as to the truth of the generalized allegations in paragraph 21 and on that basis denies

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them.

22. Defendant is without knowledge or information sufficient to form a belief as to the truth of the generalized allegations in paragraph 22 and on that basis denies them.

23. Defendant denies each and every allegation contained in paragraph 23.

24. Defendant admits that Plaintiff received access to the background screening report through First Advantage's portal. Defendant is without knowledge or information sufficient to form a belief as to the truth as to whether the link subsequently expired. Defendant denies the remaining allegations in paragraph 24, including the allegations pled on information and belief.

D. The Adverse Employment Action

25. Defendant admits that Plaintiff received an adverse action notice on or about March 19, 2025. Defendant admits that the notice confirmed that FedEx had taken final adverse action and withdrawn the conditional offer of employment. Defendant denies the remaining allegations in paragraph 25.

26. Defendant admits that FedEx withdrew the conditional offer of employment. Defendant further admits that the adverse action letter referenced a review of the National Sex Offender Public Website and the California state Sex Offender website, and identified a conviction for Assault with Intent to Commit a Specified Sex Offense under Penal Code section 220(a)(1). Defendant denies the remaining allegations in paragraph 26 and specifically denies that FedEx's reliance on that information was unlawful or in violation of any statute. Defendant affirmatively alleges that its decision was independently warranted by Plaintiff's material misrepresentations on his background check forms on January 8, 2025, in which Plaintiff falsely stated that he had never been convicted of, or pled guilty, no contest, or nolo contendere to a crime involving sex-based offenses.

27. Defendant denies the allegations in paragraph 27. Defendant specifically denies that no other disqualifying information existed and affirmatively alleges that

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Plaintiff's false answers on the background check forms dated January 8, 2025 constituted an independent basis for the adverse employment action.

28. Defendant denies each and every allegation contained in paragraph 28.

E. Damages

29. Defendant denies each and every allegation contained in paragraph 29.

30. Defendant denies each and every allegation contained in paragraph 30.

31. Defendant denies each and every allegation contained in paragraph 31.

FIRST CAUSE OF ACTION (Violation of California Penal Code Section 290.46(j)(2)(E))

32. Defendant incorporates by reference its responses to paragraphs 1 through 31 above.

33. Paragraph 33 purports to characterize California Penal Code section 290.46(j)(1) and (j)(2)(E). To the extent it accurately states the law, no response is required. To the extent it misstates the law or draws legal conclusions, including the allegation that the statute admits no exception for private employers, Defendant denies the allegations.

34. Defendant admits that the background screening report prepared by First Advantage and provided to FedEx identified Plaintiff as a registrant on California's sex offender registry in connection with a conviction for Assault with Intent to Commit a Specified Sex Offense under Penal Code section 220(a)(1). Defendant denies the remaining allegations in paragraph 34, including the allegation that FedEx's use of that information was unlawful.

35. Defendant denies each and every allegation in paragraph 35. Defendant specifically denies that FedEx's consideration of the information in the background screening report constituted an unlawful use of sex offender registry information for employment purposes within the meaning of Penal Code section 290.46(j)(2)(E).

36. Defendant denies each and every allegation in paragraph 36. Defendant specifically denies that no applicable exception to the statute exists and denies that

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FedEx's use of the background information was unauthorized.

37. Paragraph 37 purports to characterize a statute and draw legal conclusions regarding available remedies. To the extent paragraph 37 accurately states the law, no response is required. To the extent it misstates the law or draws legal conclusions, Defendant denies the allegations.

SECOND CAUSE OF ACTION (Failure to Hire in Violation of Public Policy)

38. Defendant incorporates by reference its responses to paragraphs 1 through 31 above.

39. Defendant denies each and every allegation in paragraph 39.

40. Paragraph 40 purports to characterize a statute and draw legal conclusions. To the extent paragraph 40 accurately states the law, no response is required. To the extent it misstates the law or draws legal conclusions, including the characterization of section 290.46(j)(2)(E) as embodying a "fundamental public policy" that bars FedEx's conduct, Defendant denies the allegations.

41. Defendant denies each and every allegation in paragraph 41. Defendant specifically denies that its decision to withdraw the conditional offer of employment was based in whole or in substantial part on Plaintiff's sex offender registry status in violation of any public policy.

42. Defendant denies each and every allegation in paragraph 42.

43. Defendant denies each and every allegation in paragraph 43, including the allegation that FedEx's conduct was willful, malicious, or in conscious disregard of Plaintiff's rights, and denies that Plaintiff is entitled to punitive damages.

THIRD CAUSE OF ACTION (Violation of ICRAA)

44. Defendant incorporates by reference its responses to paragraphs 1 through 31 above.

45. Paragraph 45 purports to characterize a statute and contains mixed allegations of fact and law. Defendant admits that First Advantage is an investigative consumer reporting agency and that it prepared a background screening report.

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Defendant denies the remaining allegations and legal conclusions in paragraph 45.

46. Defendant denies each and every allegation in paragraph 46.

47. Defendant denies each and every allegation in paragraph 47.

48. Paragraph 48 purports to characterize a statute and draw legal conclusions. To the extent paragraph 48 accurately states the law, no response is required. To the extent it misstates the law or alleges damages, Defendant denies the allegations.

FOURTH CAUSE OF ACTION (Invasion of Privacy)

49. Defendant incorporates by reference its responses to paragraphs 1 through 31 above.

50. Paragraph 50 purports to characterize constitutional and statutory law. To the extent paragraph 50 accurately states the law, no response is required. To the extent it misstates the law or draws legal conclusions, Defendant denies the allegations.

51. Defendant denies the allegations in paragraph 51. Defendant specifically denies that its access to or consideration of background screening report information constituted an unauthorized or prohibited use.

52. Defendant denies each and every allegation in paragraph 52.

53. Defendant denies each and every allegation in paragraph 53.

FIFTH CAUSE OF ACTION (Negligence Per Se)

54. Defendant incorporates by reference its responses to paragraphs 1 through 31 above.

55. Defendant denies each and every allegation in paragraph 55, including the legal conclusion that Plaintiff is a member of a class of persons that California Penal Code section 290.46(j)(2)(E) was designed to protect from FedEx's alleged conduct.

56. Defendant denies each and every allegation in paragraph 56.

57. Defendant denies each and every allegation in paragraph 57.

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58. Defendant denies each and every allegation in paragraph 58.

SIXTH CAUSE OF ACTION (Unlawful Business Practices)

59. Defendant incorporates by reference its responses to paragraphs 1 through 31 above.

60. Paragraph 60 purports to characterize a statute. To the extent paragraph 60 accurately states the law, no response is required. To the extent it misstates the law or draws legal conclusions, Defendant denies the allegations.

61. Defendant denies each and every allegation in paragraph 61, including the characterization of its conduct as "unlawful" under Business and Professions Code section 17200.

62. Defendant denies each and every allegation in paragraph 62.

63. Defendant denies each and every allegation in paragraph 63.

64. Defendant denies each and every allegation in paragraph 64, and specifically denies that Plaintiff is entitled to restitution, injunctive relief, or any other equitable remedy.

AFFIRMATIVE DEFENSES

Defendant asserts the following affirmative defenses pursuant to Rule 8(c) of the Federal Rules of Civil Procedure to each and every cause of action alleged in Plaintiff's Complaint. By asserting the defenses, Defendant does not concede that it has the burden of proof as to any affirmative defense asserted below, or that Plaintiff has properly asserted any cause of action against Defendant. Defendant does not presently know all the facts concerning the conduct alleged by Plaintiff to sufficiently state all affirmative defenses at this time. Defendant will seek leave of this Court to amend this Answer should they later discover facts demonstrating the existence of additional affirmative defenses.

FIRST AFFIRMATIVE DEFENSE

(Failure to State a Claim)

As a separate and distinct affirmative defense, Defendant is informed and

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believes that a reasonable opportunity for investigation and discovery will reveal, and on that basis alleges, that Plaintiff's Complaint, and each cause of action alleged therein, is barred, in whole or in part, because it fails to state facts sufficient to constitute a cause of action upon which relief may be granted.

SECOND AFFIRMATIVE DEFENSE

(Statutes of Limitation)

As a separate and distinct affirmative defense, Defendant alleges that each purported cause of action set forth in the Plaintiff is barred in whole or in part by the applicable statute(s) of limitation including, but not limited to, the limitations periods applicable under California law and federal law.

THIRD AFFIRMATIVE DEFENSE

(Laches)

As a separate and distinct affirmative defense, Defendant is informed and believes that further investigation and discovery will reveal, and on that basis alleges, that Plaintiff's claims are barred by the equitable doctrine of laches because Plaintiff unreasonably delayed in asserting his rights and such delay has prejudiced Defendant.

FOURTH AFFIRMATIVE DEFENSE

(Estoppel)

As a separate and distinct affirmative defense, Defendant is informed and believes that further investigation and discovery will reveal, and on that basis alleges, that Plaintiff's claims are barred by the equitable doctrine of estoppel.

FIFTH AFFIRMATIVE DEFENSE

(Waiver)

As a separate and distinct affirmative defense, Defendant is informed and believes that further investigation and discovery will reveal, and on that basis alleges, that Plaintiff's claims are barred by the doctrine of waiver because Plaintiff has waived one or more of his claims by his acts, conduct, or failure to timely assert his rights.

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SIXTH AFFIRMATIVE DEFENSE

(Unclean Hands)

As a separate and distinct affirmative defense, Defendant is informed and believes that further investigation and discovery will reveal, and on that basis alleges, that Plaintiff's claims are barred by the equitable doctrine of unclean hands because Plaintiff engaged in inequitable conduct, including making material misrepresentations on his background check forms.

SEVENTH AFFIRMATIVE DEFENSE

(Material Misrepresentation on Application)

As a separate and distinct affirmative defense, Defendant withdrew the conditional offer of employment based, independently and in part, on Plaintiff's dishonesty and material misrepresentations in his background check forms. On January 8, 2025, Plaintiff completed background check forms in which he was specifically asked whether he had ever been convicted of, or pled guilty, no contest, or nolo contendere to a crime involving, among other things, sex-based offenses. Plaintiff answered "NO." The background screening report prepared by First Advantage and provided to FedEx identified Plaintiff as a registrant on California's sex offender registry with a conviction for Assault with Intent to Commit a Specified Sex Offense under Penal Code section 220(a)(1), directly contradicting Plaintiff's application response. Plaintiff's false answer constituted a material misrepresentation that provided an independent, lawful basis for Defendant's decision not to hire Plaintiff, without regard to any information derived from a sex offender registry.

EIGHTH AFFIRMATIVE DEFENSE

(Statutory Exception - Protection of Persons at Risk)

As a separate and distinct affirmative defense, to the extent FedEx considered any information disclosed pursuant to California Penal Code section 290.46 in connection with its employment decision, such use was authorized under Penal Code section 290.46(j)(1) and/or another provision of law, including but not limited to the

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protection of persons at risk. The nature of Plaintiff's conviction (i.e., Assault with Intent to Commit a Specified Sex Offense under Penal Code section 220(a)(1)) and the nature of FedEx's operations, which involve regular contact with members of the public, customers, and co-workers, implicate legitimate safety and protective interests that bring Defendant's conduct within the scope of any applicable statutory exception.

NINTH AFFIRMATIVE DEFENSE

(Good Faith Belief and Justification)

As a separate and distinct affirmative defense, Defendant's actions with respect to the subject matter in each of the alleged causes of action were undertaken in good faith and for good cause, with the absence of malicious intent to injure Plaintiff, and constitute lawful, proper, and justified means to further the legitimate purpose of Defendant to engage in and continue its business activities.

TENTH AFFIRMATIVE DEFENSE

(No Authorization or Ratification)

As a separate and distinct affirmative defense, to the extent any unlawful or wrongful acts occurred (which Defendant denies), any such acts by any person employed by Defendant were outside the scope of his or her authority and were not authorized, ratified, or condoned by Defendant, nor did Defendant know or have reason to be aware of such conduct.

ELEVENTH AFFIRMATIVE DEFENSE

(After-Acquired Evidence)

As a separate and distinct affirmative defense, to the extent Defendant acquires during the course of this litigation any evidence of additional wrongdoing by Plaintiff that would have materially affected the terms and conditions of Plaintiff's employment or would have resulted in Plaintiff being demoted, disciplined, or not hired, such after-acquired evidence shall bar Plaintiff's claims on liability or damages or shall reduce such claims as provided by law.

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TWELFTH AFFIRMATIVE DEFENSE

(Outside Course and Scope)

As a separate and distinct affirmative defense, to the extent that any employees of Defendant took the actions alleged (which Defendant denies), such actions were committed outside the course and scope of such employees' employment, were not authorized, adopted, or ratified by Defendant, and Defendant did not know of, nor should it have known of, such conduct.

THIRTEENTH AFFIRMATIVE DEFENSE

(No Intentional Infliction of Emotional Distress)

As a separate and distinct affirmative defense, Defendant, by any actions taken towards Plaintiff, did not intend to inflict emotional distress upon him.

FOURTEENTH AFFIRMATIVE DEFENSE

(Plaintiff Injured by Own Conduct)

As a separate and distinct affirmative defense, if Plaintiff suffered any injury or damage (which Defendant denies), such injury and/or damage was proximately caused or contributed to by Plaintiff's own conduct, including but not limited to his material misrepresentations on his background check forms, carelessness, recklessness, consent, comparative negligence, and/or failure to perform covenants and conditions on his part to be performed, thereby reducing or barring his claims against Defendant.

FIFTEENTH AFFIRMATIVE DEFENSE

(No Emotional Distress Suffered)

As a separate and distinct affirmative defense, Plaintiff has not suffered emotional distress, severe or otherwise.

SIXTEENTH AFFIRMATIVE DEFENSE

(Alleged Emotional Distress Caused by Outside Factors)

As a separate and distinct affirmative defense, if Plaintiff has suffered any emotional distress (which Defendant denies), such emotional distress was proximately caused by factors other than Plaintiff's application for employment, the actions of

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Defendant, and/or anyone acting on Defendant's behalf.

SEVENTEENTH AFFIRMATIVE DEFENSE

(Avoidable Consequences)

As a separate and distinct affirmative defense, each purported cause of action is barred, or any recovery should be reduced, pursuant to the avoidable consequences doctrine because Defendant exercised reasonable care to prevent and correct promptly any discriminatory or otherwise unlawful behavior, including having in place anti-discrimination and anti-harassment policies; Plaintiff unreasonably failed to take advantage of any preventative and corrective opportunities provided by Defendant or to otherwise avoid harm; and Plaintiff's reasonable use of Defendant's procedures would have prevented at least some, if not all, of the purported harm of which Plaintiff now claims.

EIGHTEENTH AFFIRMATIVE DEFENSE

(Offset)

As a separate and distinct affirmative defense, any recovery to which Plaintiff might otherwise be entitled must be offset by any unemployment benefits or other monies or benefits Plaintiff has received or will receive from any source in connection with his alleged damages.

NINETEENTH AFFIRMATIVE DEFENSE

(Failure To Mitigate Damages)

As a separate and distinct affirmative defense, Plaintiff has failed to exercise reasonable care to mitigate his damages, if any were suffered, and his right to recover against Defendant should be reduced and/or eliminated by such failure.

TWENTIETH AFFIRMATIVE DEFENSE

(Punitive Damages Barred)

As a separate and distinct affirmative defense, Defendant's good faith efforts to prevent discrimination, retaliation, and any other unlawful acts bar any award for punitive damages or exemplary damages.

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TWENTY-FIRST AFFIRMATIVE DEFENSE

(No Punitive Damages Against Defendant)

As a separate and distinct affirmative defense, Plaintiff is not entitled to recover punitive or exemplary damages from Defendant because none of Defendant's officers, directors, or managing agents committed the alleged acts, authorized them, or ratified them, nor did Defendant's officers, directors, or managing agents have advance knowledge of the unfitness, if any, of the employee or employees who allegedly committed said acts, nor did Defendant employ said employee with a conscious disregard of the rights or safety of others. Additionally, Defendant's good faith efforts to prevent unlawful conduct bar any award of punitive damages.

TWENTY-SECOND AFFIRMATIVE DEFENSE

(Punitive Damages Unconstitutional)

As a separate and distinct affirmative defense, Plaintiff is not entitled to recover any punitive or exemplary damages as prayed for in the Complaint on the grounds that any award of punitive or exemplary damages under California law in general and/or any such award under California law as applied to the facts of this action would violate Defendant's constitutional rights under provisions of the United States and California Constitutions, including but not limited to the due process clauses of the Fifth and Fourteenth Amendments of the United States Constitution.

TWENTY-THIRD AFFIRMATIVE DEFENSE

(Prejudgment Interest Cannot Be Granted)

As a separate and distinct affirmative defense, Plaintiff's Complaint, and each cause of action alleged therein, fails to properly state a claim upon which prejudgment interest may be awarded, as the damages claimed are not sufficiently certain to allow an award of prejudgment interest.

TWENTY-FOURTH AFFIRMATIVE DEFENSE

(Failure To State Facts Sufficient for Attorneys' Fees)

As a separate and distinct affirmative defense, Plaintiff has failed to state facts

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sufficient to entitle him to costs of suit incurred herein and/or an award of attorneys' fees.

TWENTY-FIFTH AFFIRMATIVE DEFENSE

(Adequate Remedy at Law)

As a separate and distinct affirmative defense, the Complaint fails to state facts sufficient to support any granting of extraordinary or equitable relief, as Plaintiff has adequate remedies at law.

TWENTY-SIXTH AFFIRMATIVE DEFENSE

(No Violation of ICRAA)

As a separate and distinct affirmative defense, Defendant complied with all requirements of the Investigative Consumer Reporting Agencies Act under California Civil Code section 1786 *et seq*.

TWENTY-SEVENTH AFFIRMATIVE DEFENSE

(Failure To Exhaust Intra-Organizational Remedies)

As a separate and distinct affirmative defense, Plaintiff is not entitled to relief for the claims alleged because Plaintiff did not exhaust the remedies available through Defendant's grievance procedures.

TWENTY-EIGHTH AFFIRMATIVE DEFENSE

(Failure To Exhaust Administrative Remedies)

As a separate and distinct affirmative defense, the Complaint and each purported cause of action alleged therein are barred, in whole or in part, because Plaintiff failed to exhaust the administrative remedies available to him under California and federal law.

TWENTY-NINTH AFFIRMATIVE DEFENSE

(No Causation)

As a separate and distinct affirmative defense, the injuries and damages allegedly incurred by Plaintiff were not the result of any acts, omissions, or other conduct of Defendant and/or Defendant's agents and/or employees.

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THIRTIETH AFFIRMATIVE DEFENSE

(No Knowledge or Consent Regarding ICRAA Violation)

As a separate and distinct affirmative defense, to the extent any agent of or entity contracted with Defendant intentionally, willfully, or negligently violated any provisions of the ICRAA (which Defendant denies), it was done outside the scope of his or her employment and/or contract and without the knowledge, authority, and/or consent of Defendant.

THIRTY-FIRST AFFIRMATIVE DEFENSE

(Consent)

As a separate and distinct affirmative defense, the equitable doctrine of consent bars the Complaint and each cause of action therein.

THIRTY-SECOND AFFIRMATIVE DEFENSE

(No Liability of Defendant)

As a separate and distinct affirmative defense, if any loss, injury, damage, or detriment occurred (which Defendant denies), Defendant did not cause, authorize, or ratify it, and therefore is not liable for it.

THIRTY-THIRD AFFIRMATIVE DEFENSE

(Failure To Allege Facts Sufficient to Support Punitive Damages)

As a separate and distinct affirmative defense, Plaintiff is not entitled to recover punitive or exemplary damages because Plaintiff failed to allege facts sufficient to state a claim for punitive or exemplary damages or to show that Defendant is guilty of oppression, fraud, or malice as defined under California Civil Code section 3294.

THIRTY-FOURTH AFFIRMATIVE DEFENSE

(Plaintiff Did Not Sustain Any Damages)

As a separate and distinct affirmative defense, Plaintiff's claims are barred because Plaintiff has not alleged or sustained any actual damages, and accordingly Plaintiff has no valid cause of action or remedy against Defendant.

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THIRTY-FIFTH AFFIRMATIVE DEFENSE

(Indispensable Parties)

As a separate and distinct affirmative defense, Plaintiff's claims are barred by his failure to join necessary and/or indispensable parties under Rule 19 of the Federal Rules of Civil Procedure.

THIRTY-SIXTH AFFIRMATIVE DEFENSE

(Statutory Damage Award Limitation)

As a separate and distinct affirmative defense, any award of statutory damages, penalties, punitive damages, or other monetary remedies should be abated and/or reduced in the Court's discretion based on Defendant's good faith belief in the lawfulness of, and justification for, its acts and/or omissions, the lack of harm resulting from such acts and/or omissions, the technical versus substantive nature of any violations found to have occurred, and such other facts and circumstances as the Court may consider.

THIRTY-SEVENTH AFFIRMATIVE DEFENSE

(Excessive Fine Limitations)

As a separate and distinct affirmative defense, any award of statutory damages, penalties, punitive damages, or other monetary remedies must be made, if at all, in accordance with the prohibition on excessive fines set forth in the Eighth Amendment to the United States Constitution and any equivalent and applicable state constitutional provisions.

THIRTY-EIGHTH AFFIRMATIVE DEFENSE

(Reasonable Compliance with ICRAA)

As a separate and distinct affirmative defense, Defendant maintained reasonable procedures to assure compliance with the ICRAA statute.

THIRTY-NINTH AFFIRMATIVE DEFENSE

(Not Consumer Reports or Statutory Exception)

As a separate and distinct affirmative defense, Plaintiff's claims are barred, in

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whole or in part, because Plaintiff's background report was not a "consumer report" or fell within a statutory exception to the definition of "consumer report" or qualified for exceptions under applicable law.

FORTIETH AFFIRMATIVE DEFENSE

(One Satisfaction Rule)

As a separate and distinct affirmative defense, Plaintiff's claims are barred, in whole or in part, to the extent that Plaintiff seeks more than one recovery for the same underlying harm, whether from separate defendants or from third parties who allegedly caused or contributed to the same underlying harm.

FORTY-FIRST AFFIRMATIVE DEFENSE

(No Gross Negligence or Willfulness)

As a separate and distinct affirmative defense, Defendant did not engage in any grossly negligent or willful violation of the ICRAA statute or any other statute.

FORTY-SECOND AFFIRMATIVE DEFENSE

(Lack Of Standing)

As a separate and distinct affirmative defense, Plaintiff lacks standing to assert some or all of the claims alleged in the Complaint. Plaintiff has failed to plead sufficient facts demonstrating that he has suffered injury in fact sufficient to satisfy Article III standing requirements or the substantive standards required to bring an ICRAA claim or any of the other claims alleged.

FORTY-THIRD AFFIRMATIVE DEFENSE

(Alternative Causation of Alleged Emotional Distress)

As a separate and distinct affirmative defense, if Plaintiff has suffered any emotional distress (which Defendant denies), such emotional distress was proximately caused by factors other than Plaintiff's application for employment, the actions of Defendant, or anyone acting on Defendant's behalf.

RESERVATION OF ADDITIONAL DEFENSES

Defendant presently has insufficient knowledge or information upon which to

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form a belief as to whether additional, as yet unstated, defenses may be warranted and reserves the right to assert additional defenses or affirmative defenses in the event discovery indicates such defenses are appropriate.

PRAYER FOR RELIEF

WHEREFORE, Defendant Federal Express Corporation respectfully prays for judgment as follows:

1. That judgment be entered in favor of Defendant and against Plaintiff;

2. That the Complaint herein be dismissed in its entirety with prejudice;

3. That Defendant be awarded its costs of suit herein;

4. That Defendant be awarded reasonable attorneys' fees as determined by the Court; and,

5. For such other and further relief as the Court may deem just and proper.

DATED: August 31, 2026

Respectfully submitted,

By: */s/ Allison A. Kray*
ALLISON A. KRAY
Attorney for Defendant
FEDERAL EXPRESS CORPORATION

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CERTIFICATE OF SERVICE

Brendan Ngehsi Newanforbi v. Federal Express Corporation

I am a resident of the State of California, over the age of eighteen years, and not a party to the within action. My business address is Federal Express Corporation, 2601 Main Street, Suite 1100, Irvine, California 92614.

On August 31, 2026, I served the within document(s): DEFENDANT FEDERAL EXPRESS CORPORATION'S ANSWER TO PLAINTIFF'S COMPLAINT

☑	With the Clerk of the Court for the United States District Court-Eastern District of CA by using the Court's CM/ECF system and that service will be accomplished by the court's CM/ECF system to the person(s) as set forth below.
☐	By transmitting electronically document(s) listed above to the email address(es) listed below.
☑	By placing the document(s) listed above in a sealed envelope with postage thereon fully prepaid, in the United States Mail at Irvine, California addressed as set forth below.
☐	By arranging with First Legal Attorney Service to personally deliver the document(s) listed above to the person(s) at the address(es) set forth below.
☐	By placing the document(s) listed above in a sealed envelope with delivery fees provided for, addressed to the plaintiff as follows for collection by Federal Express for overnight delivery at Federal Express Corporation, 2601 Main Street, Suite 1100, Irvine, California 92614, in accordance with Federal Express Corporation's ordinary business practices.

BRENDAN NGEHSI NEWANFORBI
Plaintiff, In Pro Per
1455 Cat Tail Drive
Stockton, CA 95204
T (209) 801-4442
bnn.cdla@gmail.com
PLAINTIFF, IN PRO PER

☑ *(Federal)* I declare that I am employed in the office of a member of the bar of this court at whose direction the service was made.

Executed on August 31, 2026, at Irvine, California.

/s/ Michele Wilson
Michele Wilson

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